

Calendar Line 3

Case Name: *Dana Lyn Banks v. A Tool Shed, Inc. et al.*

Case No.: 22CV409237

I. BACKGROUND

This is a dispute over the rental of landscaping and construction equipment. Plaintiff Dana Banks, who is self-represented, rented equipment from defendant A Tool Shed, Inc. (“ATS”) and now sues for breach of contract and related causes of action. Banks filed her complaint on December 29, 2022, naming three defendants: ATS, Robert H. Pedersen, and Rob W. Pedersen. The complaint states five causes of action: (1) Breach of Contract; (2) “Unauthorized charges to credit card on file with A Tool Shed”; (3) Breach of the Implied Covenant of Good Faith and Fair Dealing; (4) “Unfair Debt Collection Action”; and (5) “Disparagement and Emotional Distress.” Although the complaint named three defendants, all five causes of action were asserted only against ATS.

Previously, the court heard two matters in this case: (1) a combined demurrer and motion to strike portions of the complaint, filed by the individual defendants, and (2) a “Motion for Judgment and Sanctions,” filed by Banks. The court sustained the demurrer to all five causes of action with 10 days’ leave to amend, agreeing with defendants that the causes of action “fail[ed] to state sufficient facts against the individual defendants, Robert H. Pedersen and Rob W. Pedersen.” (March 5, 2024 Order, p. 4:18-23.) The court also denied defendants’ motion to strike and denied Banks’ “Motion for Judgment and Sanctions.” On March 7, 2024, defendants served a notice of entry of the court’s March 5, 2024 order on Banks.

No amended complaint has been filed by Banks. Currently before the court are two matters: (1) Defendants’ ex parte application for an order dismissing the individual defendants, and (2) Banks’s noticed motion for leave to file an amended complaint and “to reconsider” the court’s March 5, 2024 ruling on the demurrer. The application and motion were both filed on March 27, 2024. Banks submitted an opposition to the ex parte application on March 27, 2024. On March 28, the court informed the parties that the court would consider the ex parte application and the motion together on the noticed hearing date of July 2, 2024, given the overlapping issues.

II. REQUEST FOR JUDICIAL NOTICE

Defendants have submitted a request for judicial notice with their opposition to Banks’s motion. “Judicial notice may not be taken of any matter unless authorized or required by law.” (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory forms is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307 [citing *People v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422, fn. 2].) It is the court, and not the parties, that determines relevance. Evidence Code section 453, subdivision (b), requires a party seeking notice to “[furnish] the court with sufficient information to enable it to take judicial notice of the matter.”

Defendants request that the court take judicial notice of five documents pursuant to Evidence Code section 452, subdivision (d): Exhibits A-E. Exhibit A is the court’s March 5, 2024 order. Exhibit B is a copy of defendants’ March 27 ex parte application. Exhibit C is the

court's March 28 order deferring consideration of the ex parte application. Exhibit D is a copy of defendants' March 7 notice of entry of order. Exhibit E is a copy of a memorandum in support of a motion to compel filed by defendants on May 29, 2024.

The court GRANTS judicial notice of Exhibits A-D under Evidence Code section 452, subdivision (d). The court DENIES the request for judicial notice of Exhibit E, as it is irrelevant to the material issues before the court.

III. MOTION FOR RECONSIDERATION

A. General Standards

Code of Civil Procedure section 1008 represents the Legislature's attempt to regulate what the Supreme Court has referred to as "repetitive motions." (See *Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 885 [disapproved on other grounds, *Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830].) Motions for reconsideration are regulated by Code of Civil Procedure section 1008, subdivision (a), which states that such a motion may be brought by "any party affected by" a prior order. The statute requires that any such motion be: (1) filed within 10 days after service upon the party of written notice of the entry of the order of which reconsideration is sought, (2) supported by new or different facts, circumstances or law, and (3) accompanied by an affidavit detailing the circumstances of the first motion, and the respects in which the new motion differs from it. Reconsideration cannot be granted based on an argument that the court misinterpreted the law in the prior ruling; that is not a "new" or "different" matter. (See *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500 (*Gilberd*).)

A motion for reconsideration must be accompanied by a declaration from the moving party, stating: 1) what application was made before; 2) when and before what judge the application was made; 3) what order or decision was made; and 4) what new or different facts, circumstances or law are claimed to be shown. (Code Civ. Proc. § 1008(a); *Branner v. Regents of Univ. of Calif.* (2009) 175 Cal.App.4th 1043, 1048 [motion filed without supporting affidavit invalid].)

Reconsideration is properly restricted to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. The burden under section 1008 "is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial." (*New York Times Co. v. Sup. Ct. (Wall St. Network, Ltd.)* (2005) 135 Cal.App.4th 206, 212-213.) A party seeking reconsideration of a prior order based on "new or different facts, circumstances or law" must provide a satisfactory explanation for failing to present the information at the first hearing—i.e., they must make a showing of reasonable diligence. (See *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 689-690; *California Correctional Peace Officers Ass'n v. Virga* (2010) 181 Cal.App.4th 30, 47, fn. 15 [collecting cases].)

B. Analysis

The court DENIES Banks' motion for reconsideration, for the reasons that follow.

First, defendants’ filing of a notice of entry of order on March 7, 2024 started the 10-day period in which a motion for reconsideration could be filed. Banks’ motion, filed on March 27, is clearly untimely under section 1008. On its own, this is a sufficient basis to deny the motion for reconsideration. (See *Wiz Technology, Inc. v. Coopers & Lybrand LLP* (2003) 106 Cal.App.4th 1, 16-17 [affirming denial of motion for reconsideration filed one day late].)

Second, the declaration submitted by Banks does not satisfy the requirements of Code of Civil Procedure section 1008, subdivisions (a) and (b). It does not describe the prior application or order and does not clearly describe what new facts or law the court is meant to consider. Even more fundamentally, it does not describe what aspects of the court’s ruling Banks wishes to change. It does not set forth any actual reasons for reconsideration. Finally, because the motion is untimely, the supporting declaration also fails to show reasonable diligence, as it does not explain why Banks’s arguments—such as they are—were not contained in the briefing on the original demurrer.

Code of Civil Procedure section 1008, subdivision (d), provides that a motion that fails to comply with the requirements of the statute “may” be treated as a contempt and the moving party *may* be sanctioned under Code of Civil Procedure section 128.7. The court declines to treat Banks’ motion as a contempt and DENIES defendants’ request for monetary sanctions for having had to oppose the reconsideration motion.³

IV. MOTION FOR LEAVE TO FILE AMENDED COMPLAINT

A. General Standards

Motions for leave to amend are directed to the discretion of the court. “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading . . .” (Code Civ. Proc. § 473, subd. (a)(1).) The law generally favors amendments on the basis that cases should include all disputed matters between parties and be decided on their merits. Nevertheless, if the party seeking amendment has been dilatory and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (See *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.) Absent other prejudice, delay alone is not considered grounds for denial. Prejudice exists where the amendment would require delaying the trial, result in the loss of critical evidence, add costs of preparation, or increase the burden of discovery, etc. (See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488; See also *Melican v. Regents of the Univ. of Calif.* (2007) 151 Cal.App.4th 168, 176.) Where some prejudice is shown, the court may still allow the amendment but can impose conditions. These can include continuing the trial date (if requested by the opposing party), limiting discovery, and ordering the party seeking the amendment to pay the costs and fees incurred by the opposing party in conducting discovery and preparing for trial on a newly added claim.

While this case was filed at the end of 2022, no trial date has been set and it is still in a relatively early stage. Therefore, a request for leave to amend in and of itself would not appear to be prejudicial to defendants.

³ Moreover, it does not appear that defendants gave Banks at least 21 days’ notice before making their request for sanctions, as required by section 128.7, subdivision (c)(1), making sanctions “as allowed by section 128.7” inappropriate.

Nevertheless, as defendants point out in their opposition, rule 3.1324 of the California Rules of Court states that a motion to amend “must,” among other things, include a copy of the proposed amendment or amended pleading and be accompanied by a declaration specifying: (1) the effect of the amendment; (2) why the amendment is “necessary and proper”; (3) when the facts giving rise to the amendment were discovered; and (4) the reasons why the request for amendment was not made earlier. (See Cal. Rules of Court, rule 3.1324(a) and (b).)

Here, Banks’s motion has done none of this. She does not include a copy of any proposed amendment; instead, she asks, in light of her “current health status,” for the court to grant “leave of three months to continue treatment” and “time to explore the option of finding counsel.” (Motion, pp. 1:25-2:5.) As defendants note, she has not provided a doctor’s note or other evidence to describe or corroborate her health status—in fact, she does not explain her medical situation at all, stating only: (1) that she was on “physician-ordered, sedated bed rest during the [10 days’] leave following the Court’s ruling on Defendant’s [sic] demurrer,” (2) that she is no longer on bed rest, and (3) that she “needs more time to recover.” (Motion, p. 1:25-28.) This is simply not enough, and it does not comply with rule 3.1324.⁴

To the extent that Banks describes the nature of the amendments that she is contemplating for the complaint, she does not set forth any basis for individual liability by Robert Pedersen and Rob Pedersen. Instead, the allegations in her motion (but not in any proposed pleading) that the CEO and VP of ATS “were aware” of contracts being entered into by ATS’s employees, that ATS’s employees’ actions were “requested and authorized by the CEO and/or VP,” and that discovery “will reveal” the “culpability” of ATS’s CEO and VP are all insufficient on their face. (Motion, pp. 2:15-16, 2:22-23, 3:20-21, 4:8-10.) None of these suppositions provide a basis for amending the complaint. The possibility that discovery may potentially reveal further bases for individual liability in the future does not provide a basis for amending the complaint at this time.

Finally, the fact that Banks is self-represented does not excuse her from complying with rule 3.1324. Self-represented litigants are entitled to the same, but no greater, consideration than other litigants and attorneys. (*County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444.) Self-represented litigants “are held to the same standards as attorneys” and must comply with the rules of civil procedure. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543)

The court DENIES the motion for leave to file an amended complaint.

V. DEFENDANTS’ EX PARTE APPLICATION

In light of the court’s denial of the motions to reconsider and for leave to amend, and in light of the absence of any timely and adequate amendment to the complaint by Banks, the court GRANTS the ex parte application to dismiss the individual defendants from this case, pursuant to Code of Civil Procedure section 581, subdivision (f)(2).

⁴ In addition, Banks has had more than enough “time to explore the option of finding counsel”: she filed this action more than a year and a half ago, and even if we focus solely on the demurrer proceedings of the last several months, it is awfully late for her to argue that she now needs more time than the court granted in its March 5, 2024 order. The time to have made that request would have been in her February 26, 2024 opposition to the original demurrer.

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Calendar Lines 4-5

Case Name: *Edward Charles Jenkins v. Kristina Litovchenko et al.*

Case No.: 24CV431808

This is a personal injury action in which plaintiff Edward Charles Jenkins alleges that defendant Kristina Litovchenko was driving her car while distracted and then collided with his parked car. Jenkins also alleges that Litovchenko’s passenger, defendant Artem Morozov, “provided false and misleading statements to (AAA) [sic] auto claims specialist” regarding the accident “in order to escape liability.” Jenkins, who is self-represented, has filed a handwritten form complaint (Judicial Council Form PLD-PI-001), but instead of using either the typical “Motor Vehicle” or “General Negligence” attachments with the form complaint, he has used “Intentional Tort” attachments to allege only “Intentional Torts” against each of the defendants.

Defendants have filed a demurrer and motion to strike the complaint. Notice is proper, but Jenkins has not filed any opposition to the demurrer and motion.

Defendants’ demurrer argues that the complaint fails to state a cause of action under Code of Civil Procedure section 430.10, subdivision (e), although their supporting memorandum inexplicably describes the causes of action in the complaint as *punitive damages* causes of action rather than *intentional tort* causes of action. Their motion to strike repeats the same argument without material variation: that Jenkins has failed to support any prayer for punitive damages. Despite the odd way in which defendants have presented these issues—they should have filed a demurrer that focuses solely on the sufficiency of the intentional tort causes of action, and a motion to strike that focuses solely on the propriety of punitive damages—the court ultimately concludes that the demurrer should be sustained because the complaint fails to set forth any cognizable causes of action for “intentional tort.” The allegations against Litovchenko consist solely of non-intentional torts: her distracted driving (“while texting . . . [p]laying music and taking her eyes off the road”) and “reckless” driving (“ignoring the speed limit”); they do not allege any intentional tort on her part. The allegations against Morozov focus solely on his “false and misleading” statements to an insurance claims specialist after the accident had already occurred—this, too, does not sufficiently set forth a cause of action for an intentional tort against Jenkins.

Accordingly, the court SUSTAINS the demurrer to both causes of action, with 20 days’ leave to amend. If Jenkins chooses to amend, he must present sufficient factual allegations regarding a cognizable intentional tort, or alternatively, he must set forth sufficient factual allegations using one of the other potentially applicable attachments (e.g., “Motor Vehicle”).

Because the court finds that Jenkins has not adequately alleged any intentional tort, the court agrees with defendants that the complaint does not set forth an adequate basis for punitive damages. Nevertheless, because the court is already sustaining the demurrer to the causes of action, the court DENIES the motion to strike as moot.

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